Race, Part 2: From the Drug War to the ACA

POSC 459 — Social Welfare Politics and Policy

Week 13 · Monday, November 16

Michener 2020, "Race, Politics, and the Affordable Care Act"

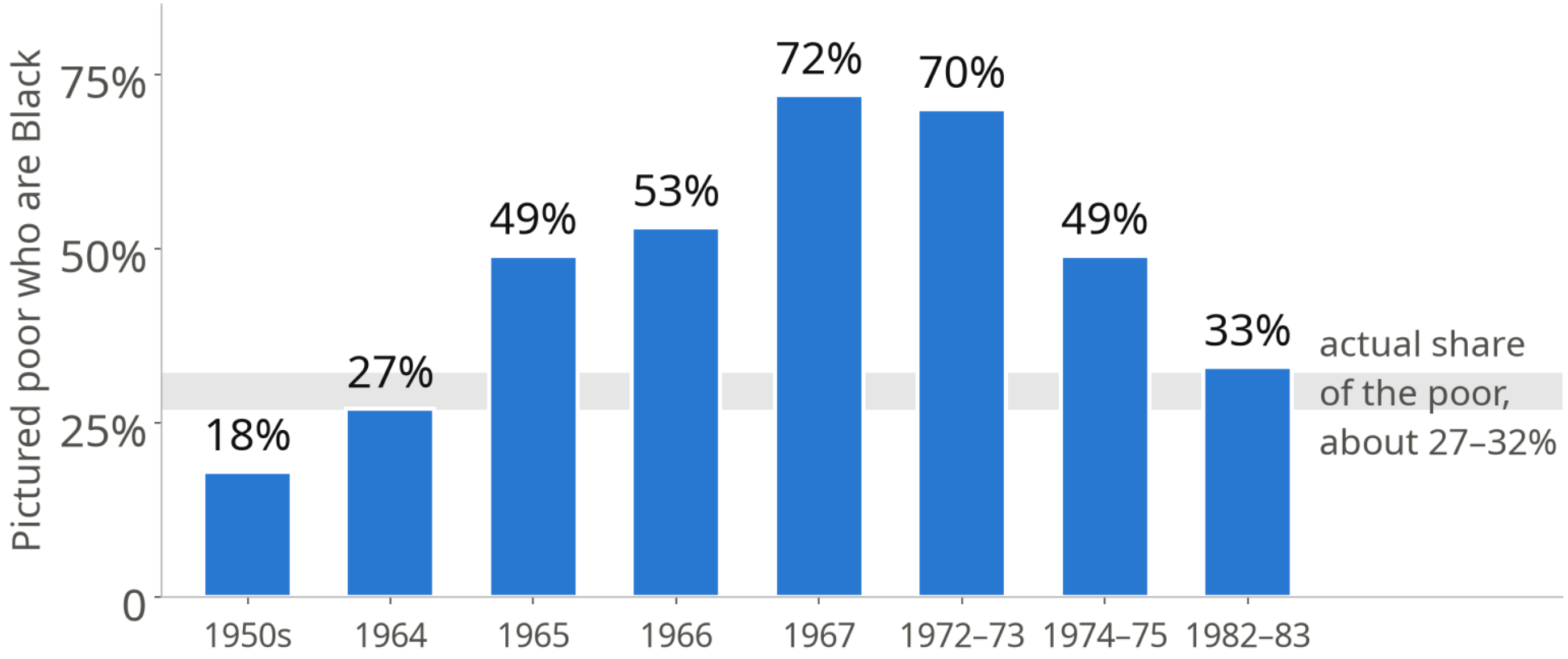


Photo: ACA signing, March 23, 2010 · Lawrence Jackson, White House · CC BY 2.0

Today

1. Last week in one picture
2. Your question: the 1980s
3. Michener: what the ACA promised
4. Medicaid after 2012
5. Waivers and work requirements
6. Beyond expansion
7. Design or politics?

Last week in one picture



Howard: lower state benefits where more minority residents live

Chart: Gilens 1999, pp. 114, 117, 123–24, 126 · Howard 2007, pp. 187–91

Your question: the 1980s

- Gilens: 1982–83, **33%** · 1988–92, "high" again
- "Underclass" stories: **100%** Black
- July 1986: **74** network news segments on crack
- 1989 column: exposed babies a "bio-underclass"
- 2001 research review: no convincing evidence of cocaine-specific harm

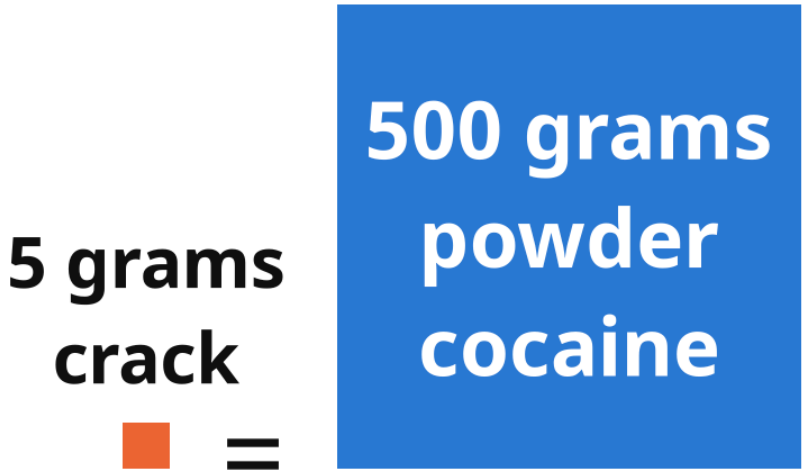


Signing the Anti-Drug Abuse Act, Oct. 27, 1986 · White House photo, National Archives

Gilens, pp. 126, 129–31 · USSC 1995, pp. 122–23 · Washington Post, July 30, 1989 · Frank et al., JAMA, 2001

1986 and 1988: 100 to 1

Same 5-year mandatory minimum



1986: 5 g crack = 500 g powder

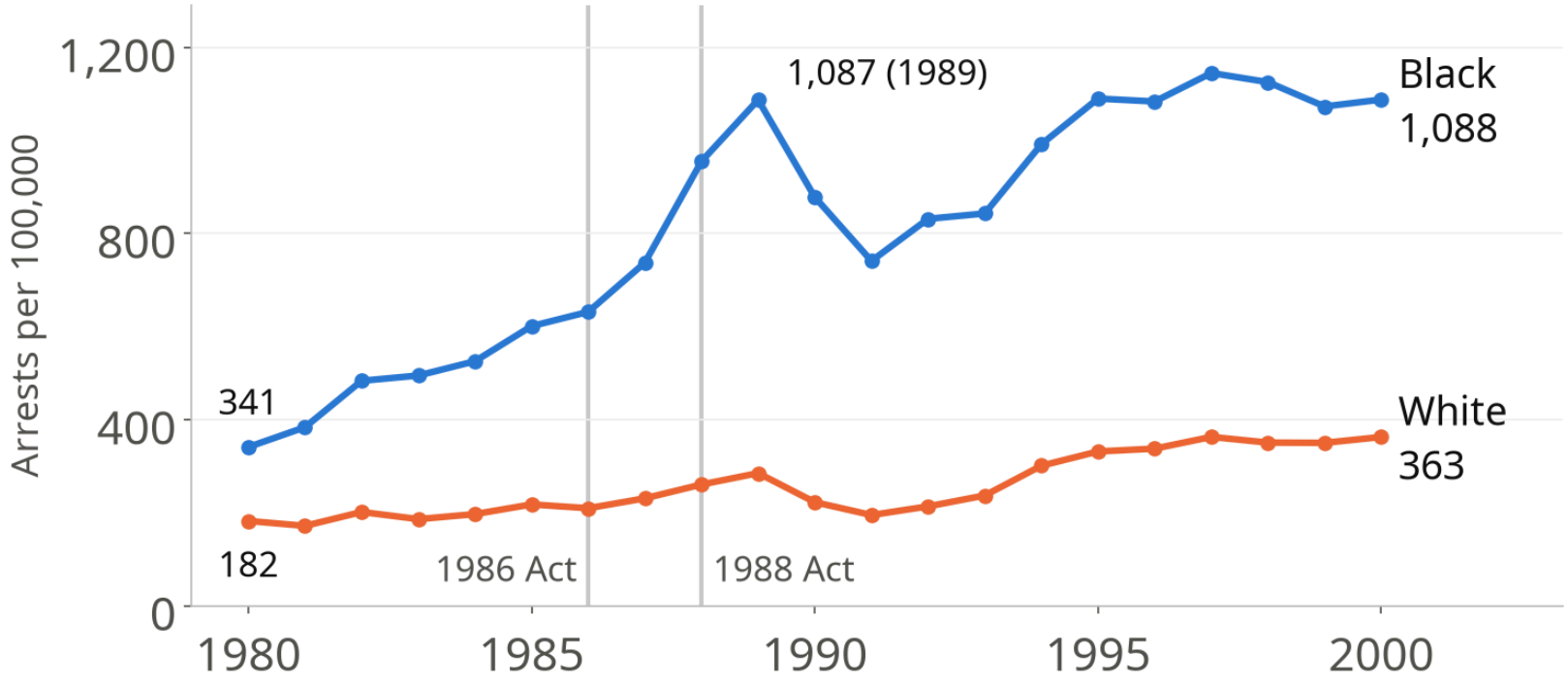
1988: 5+ g crack, first possession → 5 years

No committee hearings

2010: about 18 to 1

Pub. L. 99-570, § 1002; Pub. L. 100-690, § 6371; Pub. L. 111-220 · USSC 1995, 1997, 2002, 2015

Who was arrested, who was sentenced

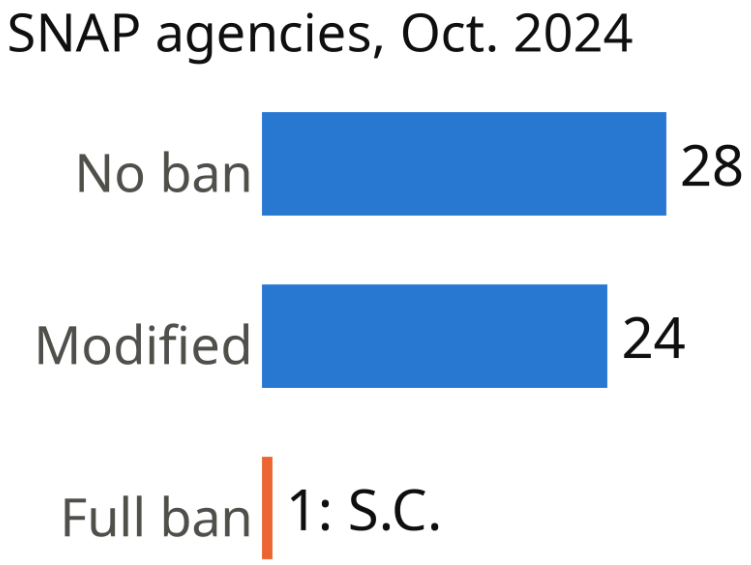


1991 survey: **52%** of crack users white · FY1992: **91.5%** of federal crack defendants Black

BJS, Arrest in the United States, 1980–2009, fig. 40 · USSC 1995, pp. 38–39 · USSC 1992 Annual Report, table 31

1996: a drug record and the safety net

- Welfare law, Aug. 22, 1996, § 115
- Drug felony → no TANF, no food stamps, for life
- States may opt out or limit it
- SNAP today: only **South Carolina** keeps the full ban
- TANF: about **7** states (2022–23 counts)



USDA, SNAP State Options Report, 17th ed., p. 16

Pub. L. 104-193, § 115; 21 U.S.C. 862a · USDA, SNAP State Options Report, 17th ed., p. 16 · CRS R42394 · GAO-05-238

Michener: policy and politics

The ACA was written to shrink racial disparities

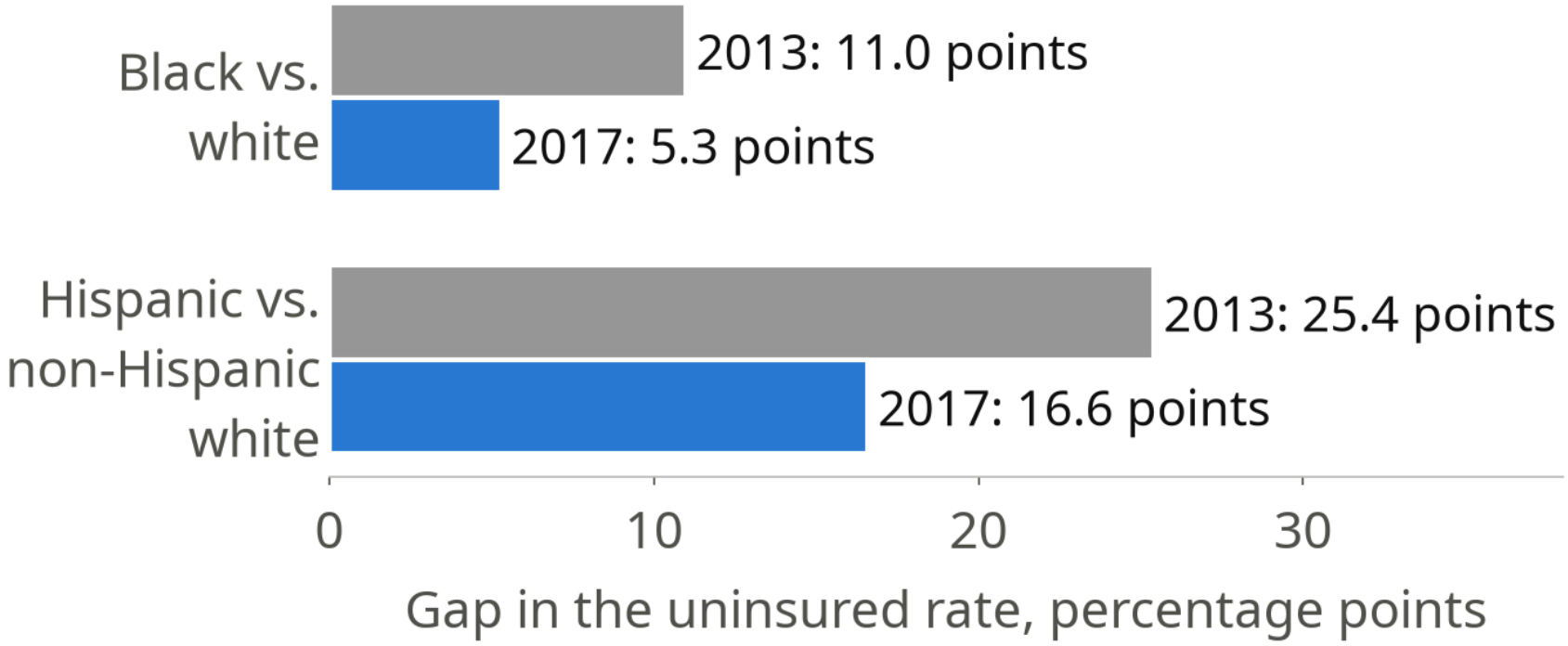
"politics can undermine the steps necessary to do so"

Two cases: Medicaid expansion · race-specific provisions

Michener 2020, JHPPL 45(4), pp. 547–49

The promise, and the first results

Law's text: **34** "disparities" · **33** "race" or "racial"



Michener, p. 548, citing Chaudry, Jackson, and Glied 2019

Medicaid expansion, as written

	2010 law
Who	everyone at or below **138%** of poverty
Carrot	**100%** federal, 2014–16 → **90%** by 2020
Stick	refuse → lose **all** federal Medicaid money
Result	one national floor, every state

Michener, pp. 549–50 · about 20% of Medicaid enrollees Black, 30% Latino (p. 550)

2012: *NFIB v. Sebelius*

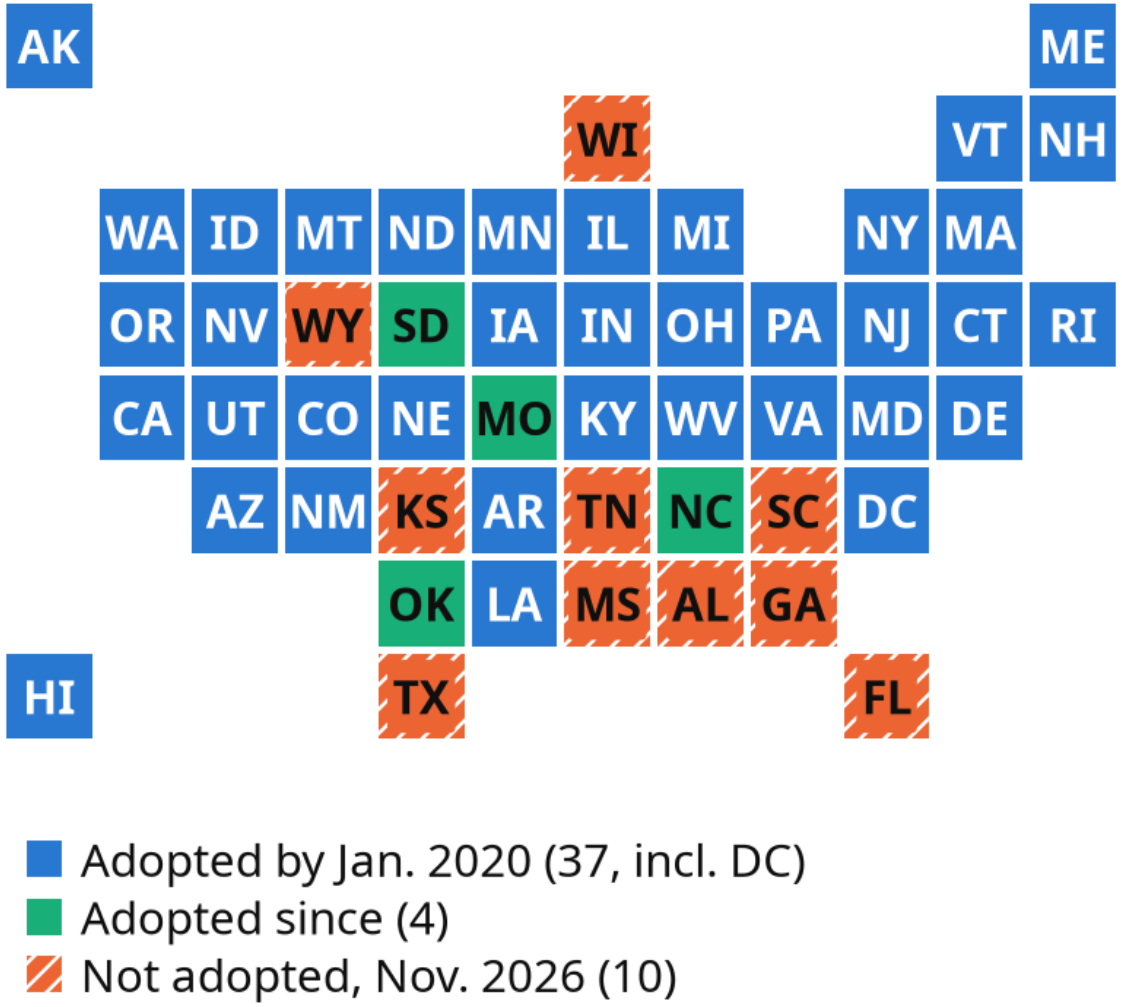
- The stick: "coercive"
- Expansion becomes a state choice
- Many states said no
- Mostly by party, "particularly in the South"



Carol M. Highsmith, Library of Congress

Michener, p. 550 · 567 U.S. 519 (2012)

Who expanded: 2020 and now



Jan. 2020: **14** said no

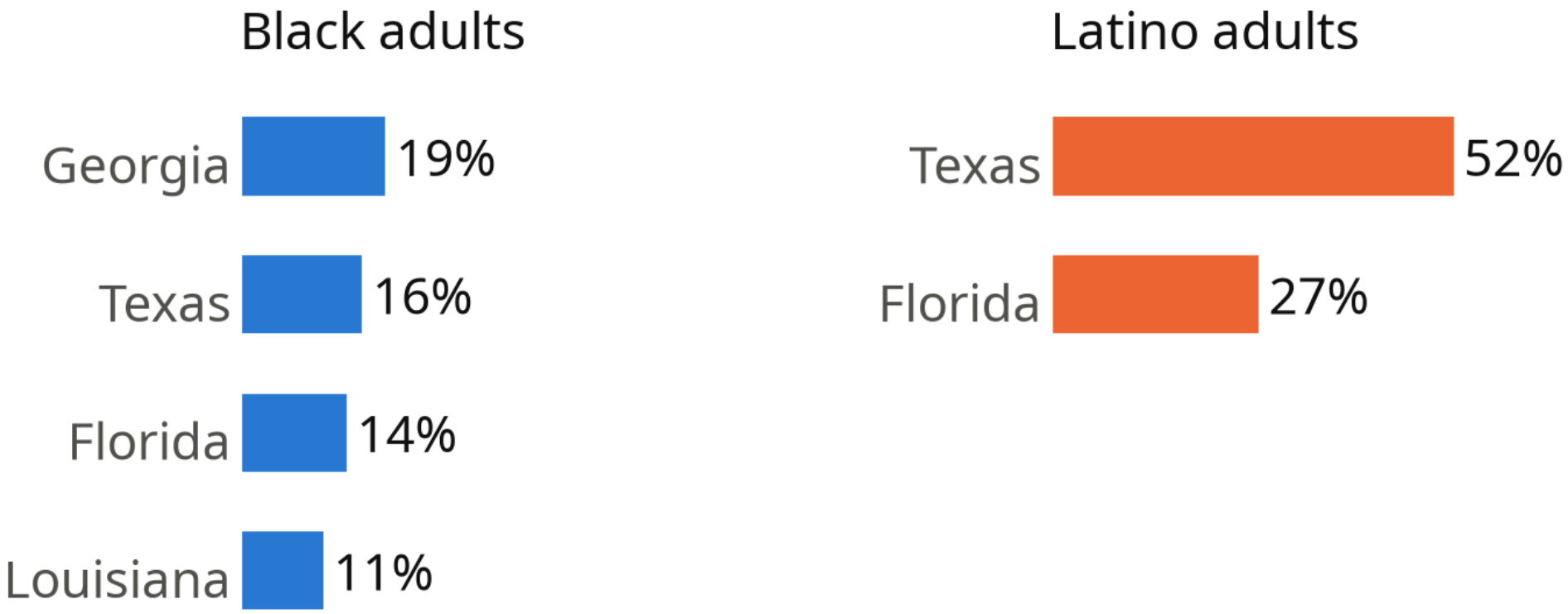
Since: MO, OK, SD by ballot; NC

Still no: **10**, 7 in the South

KFF, Status of State Medicaid Expansion Decisions, Jan. 10, 2020

and Nov. 6, 2026 · Michener, fig. 1, p. 552

Who is in the gap



Gap: too poor for marketplace help, shut out of Medicaid

Michener, p. 551, citing Artiga, Damico, and Garfield 2015 (KFF)

Why? Michener's evidence

- Racial resentment, by state ↔ resistance to expansion
- Decisions track **white** opinion, not nonwhite
- Larger Black population + low white support → less likely to expand
- Federalism: "one of the chief bulwarks of racial domination"

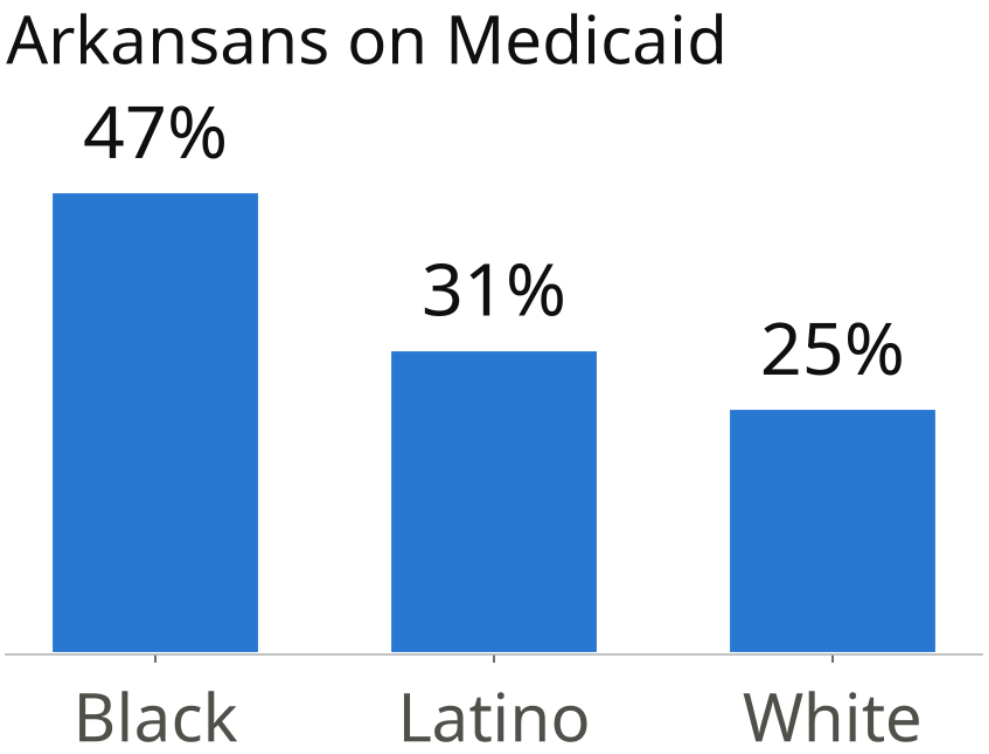
Michener, pp. 550–51 · Lanford and Quadagno 2015; Grogan and Park 2017; Brown 2003, quoted

Waivers: Arkansas Works, 2018

- Section 1115 waiver: a state rewrites its Medicaid
- Expansion adults under 50: **80 hours** a month
- Work, school, or community service, reported monthly
- 7 months: **18,000+** disenrolled
- Coverage down, uninsured up, employment unchanged

Michener, pp. 554–55 · Wagner and Schubel 2019; Sommers et al. 2019

Who carries the loss



Black Arkansans: **15%** of residents, **26%** of Medicaid

Work rule × criminal record × hiring bias

Back to 1986 and 1988

Michener, pp. 555–57 · Pager 2008, cited

Beyond expansion: three race-specific provisions

Provision	What it did	What happened
§4302, data by race	collect and report	**15** rules citing it, mostly 2012–16 · **3**, Jan. 2017 to Jan. 2020
Workforce diversity	train and diversify providers	Congress refused **$3 million** for a commission · FY2020 budget proposed cutting **$88 million** in diversity training
§1557, nondiscrimination	notices in top 15 languages	2019 rewrite dropped mailed notices · **~156,000** comments

Every row depends on an appointee or an appropriation

Michener, table 1, p. 558; pp. 557–61 · King 2017, quoted

Michener's conclusion

"the distance between policy intentions and policy outcomes"

Courts · states · waivers · appointees · appropriations

Michener, p. 561

Design or politics?

Michener: the law aimed at equity; politics undid it

Wednesday, Mettler: in 1935 the **design** did the sorting

Pairs, 4 minutes: was the ACA's gap design or politics? One page.

Sets up Paper 5

Wednesday and Friday

Wed 11/18: Mettler, *Dividing Citizens*, chs. 1, 5, 6

Fri 11/20, 11:59 p.m.: Paper 5

Same mechanism twice, or two that only look alike?

11/23–27: Thanksgiving, no class

By 2:15 you should be able to say

The picture of the poor followed sympathy, not facts

1986 and 1988: 100 to 1, and who was sentenced

1996 tied a drug record to food and cash aid

ACA: written for equity, unwound by politics

Sebelius let states opt out; the gap is Southern, Black, and Latino

Design or politics: how would you tell?